

SENATE BILL 1487

By Powers

AN ACT to amend Tennessee Code Annotated, Title 16;
Title 37 and Title 49, relative to student behavior.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) This section is known and may be cited as the "Early Behavioral Intervention and Reporting Act."

(b) As used in this section, "early warning signs" means evidence of safety, health, or behavioral issues exhibited by a student and includes, but is not limited to, indicators of a student engaging in or being the victim of harassment, intimidation, bullying, or cyberbullying; making or receiving threats of violence; and exhibiting signs of substance abuse, mental health issues, self-harm, or suicidal ideation.

(c) Each LEA and public charter school shall implement a computer-based system that teachers and school staff must use to input data of early warning signs demonstrated by students enrolled in the LEA or public charter school. Each LEA and public charter school shall ensure that each teacher and school staff member is trained to identify early warning signs and on how to input data into the computer-based system.

(d) The computer-based system implemented pursuant to subsection (c) must:

(1) Align with the harassment, intimidation, bullying, and cyberbullying policy adopted by the LEA in accordance with § 49-6-4503; the School Discipline Act, compiled in part 41 of this chapter; and with each school safety plan adopted by the LEA or public charter school pursuant to the Schools Against Violence in Education (SAVE) Act, compiled in part 8 of this chapter;

(2) Include a database that is capable of receiving and maintaining student data entered by teachers and school staff on the early warning signs demonstrated by students; and

(3) Immediately notify the LEA personnel serving on the LEA's threat assessment team created pursuant to § 49-6-2701, or the employee of the public charter school who is designated to receive such notification, when an early warning sign is entered into the system for a student.

(e) The LEA or public charter school personnel receiving a notification of an early warning sign of a student pursuant to subdivision (d)(3) shall review the notification, as well as any other notifications previously received for the student, and determine whether further action is needed to address the student's behavior.

(f)

(1) Each LEA and public charter school shall annually submit a report to the department of education that provides the following data collected by the LEA or public charter school in the immediately preceding school year:

(A) The number of early warning signs input into the system;

(B) The number of early warning signs input into the system, disaggregated by the number input by a:

(i) Teacher, disaggregated further by the grade levels and subject areas taught by such teachers; and

(ii) School staff, disaggregated further by the position, assignment, and duties of such school staff;

(C)

(i) The number of students for whom more than one (1) early warning sign was input into the system; and

(ii) The number of early warning signs for each student for whom more than one (1) early warning sign input into the system;

(D) A general description of the types of early warning signs input into the system; provided, that a description must not include details or information that would allow a student to be identified; and

(E) A general description of the actions taken by the LEA or public charter school in response to each early warning sign input into the system; provided, that a description must not include details or information that would allow a student to be identified.

(2) Reports provided pursuant to this subsection (f) must not include any details or information that would allow a student to be identified.

(g) Reports made pursuant to this section must comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g); § 10-7-504; the Data Accessibility, Transparency, and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant privacy laws.

(h) If the commissioner of education finds that an LEA or public charter school is not complying with this section, then the commissioner may withhold state funds, in an amount determined by the commissioner, from the LEA or public charter school until the LEA or public charter school is in compliance with this section.

(i) Subsections (c)-(e) do not apply to an LEA or public charter school that maintains a system for documenting early warning signs demonstrated by students that was implemented in the LEA or public charter school before July 1, 2026; provided, that the LEA or public charter school continuously maintains and utilizes the system.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.